

1602
June 9
Braughton
fined 200*l*.
and im-
prisonment,
and 'dis-
justiced'
[p. 107]
A Councillor
of the
Marches
can only be
removed by
the Queen

punishment. Braughton, being an erudite man, and in a place of justice and dignity for his virtue and erudition, *et quanto maior est dignitas tanto magis fuerit plus reum [sic]*, was fined £200, and removed from [his office as] Justice of the Peace, but being of the Council of the Marches, he is made by the Queen, and she gives him instructions, and he cannot be removed but by her. Two other defendants, gentlemen, each [fined] £100, the other defendants £20 each, and imprisonment. Braughton to pay the fines of the others who are not of ability. The Lord Keeper moved that the parties maimed should have their expenses and some recompence; *ad quod nihil fuit responsum*.¹

PIKE'S case

Order to
have those
whipped
who prefer
petitions for
trial at
common
law, after
the cause is
sentenced

The Lord Keeper moved that a man named Pike, after this court had sentenced [pronounced] a deed to be forged and [ordered] it to be cancelled, had moved by petition to him to have a trial at Common Law, and his wife, in time before, had preferred such a petition to the Queen and to him [the Lord Keeper]; And it was ordered by the Court that if she did this again, she should be lashed; and as to the right the husband had, the Court answered nothing.

ASCEWE
v.
EARL OF
LINCOLN

The Earl of
Lincolne
conforms
himself after
contempts
and impris-
onment

The Queen's Attorney moved between the Earl of Lincolne and Ascewe.² Now the Earl, after many contempts and disobeyings of orders and decrees of the Court, after conference with the said Attorney, submitted himself to the order of the Court, and craved a reference to two Judges to assess the damages; which was ordered accordingly.

Infamous
libel against
Privy
Councillors

The At-
torney may
use the
[p. 108]
messenger

He moved also that he, having preferred information against three for an infamous libel against some of state for conveying £3,000,000 out of the realm,³ etc., had seized the principal of them after attachment by a messenger, and he prayed to have several of the others committed; and if he did not answer the interrogatories within a brief time, to be held *pro confesso*. And all was ordered accordingly.

¹ See *post*, p. 147.

² See *ante*, pp. 12, 114.

³ Probably the case against

Michael Cawley and others, see *ante*, p. 143, and below.